

TICKER: CARGI
SUB-INDUSTRY: Agricultural Products & Services
COUNTRY: US
LAST REPORT UPDATE DATE: February 02, 2026

LOWEST SCORE

LOWEST FLAG

1/10

0

PERFORMANCE DASHBOARD

Significant Controversies by Indicator

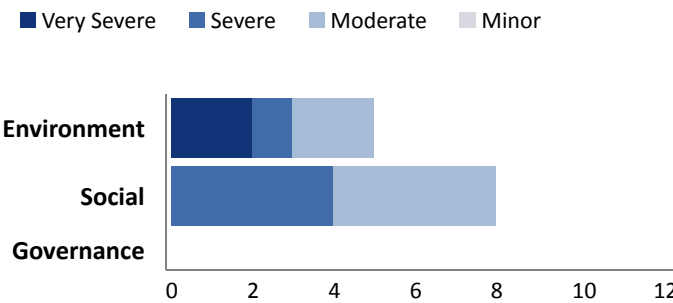
	Flag	Score	Global Compact Status
Environment	O	1	
Operational Waste (Non-Hazardous)	Y	4	Pass
Supply Chain Management	O	1	Watch List
Water Stress	Y	4	Pass
Social	O	1	
Customers	G	5	
The company is involved in moderate and minor controversies.			
Human Rights & Community	O	1	
Impact on Local Communities	O	1	Watch List
Labor Rights & Supply Chain	Y	3	
Child Labor	Y	3	Pass
Health & Safety	Y	3	Pass
Governance	G	10	
No controversies were uncovered.			

Summary

CARGILL, INCORPORATED is involved in controversies related to its Environment, Labor Rights, Human Rights and Customers impacts. It faces significant concerns related to Supply Chain Management, Impact on Local Communities, Child Labor, and Health & Safety.

Global Compact Alignment: Watch List

of Controversy Cases by ESG Pillar (13 in total)



OVERALL COMPANY SCORE CHANGE RATIONALE

The Overall Company Score remains unchanged as of Feb 02, 2026. Please note that there may be updates to individual controversy cases, but these did not affect the company's Overall Score.

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

CARGILL, INCORPORATED

MOST RECENT UPDATES (past 12 months)

Controversy Headline	Type of Update	Assessment	Indicator	Last Reviewed
Oklahoma, US: Federal lawsuit by state over alleged poultry litter dumping and wastewater pollution; US district judge issued final judgment; appeal filed and request for stay pending		Moderate	Operational Waste (Non-Hazardous)	February 2026
Avara Foods, UK: Lawsuit over alleged river pollution and its impact on residents, tourism, and livelihoods		Severe	Impact on Local Communities	December 2025
Avara Foods, UK: Allegations of pollution and water-use violations in River Wye		Moderate	Water Stress	December 2025
US and Canada: Investigations and lawsuits over alleged anti-competitive practices in the beef market; USD 32.5 million settlement proposed		Moderate	Anticompetitive Practices	November 2025
Alberta, Canada: Investigation into workplace safety of High River meat processing plant amid COVID-19 outbreak		Moderate	Health & Safety	October 2025

MOST SIGNIFICANT CONTROVERSIES

Controversy Headline	Assessment	Indicator
Indonesia, Malaysia, Mexico, and Papua New Guinea: Criticism by environmental protection groups over palm oil sourcing allegedly linked to deforestation	Very Severe	Supply Chain Management
Brazil, Bolivia, and US: Criticism and legal complaint by environmental protection groups over soy sourcing allegedly linked to deforestation	Very Severe	Supply Chain Management
Avara Foods, UK: Lawsuit over alleged river pollution and its impact on residents, tourism, and livelihoods	Severe	Impact on Local Communities
Canada and US: Investigations into allegations of failing to protect workers from COVID-19 exposure in meatpacking facilities	Severe	Health & Safety
Cote d'Ivoire and Ghana: Criticism by environmental protection groups over cocoa sourcing allegedly linked to deforestation	Severe	Supply Chain Management
Brazil and Indonesia: Criticism by environmental and human rights protection groups over commodity sourcing allegedly linked to the encroachment of Indigenous Peoples lands and human rights violations	Severe	Impact on Local Communities
Brazil, Cote d'Ivoire, Ghana, and US: Criticism and lawsuits from human rights groups over cocoa sourcing allegedly linked to child labor	Severe	Child Labor

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Environment

Controversies

01

ENVIRONMENT CONTROVERSIES01

Indicators	Flag	Score	Assessment
Biodiversity & Land Use	G	10	No Controversies
Energy & Climate Change	G	10	No Controversies
Operational Waste (Non-Hazardous)	Y	4	Moderate
Supply Chain Management	O	1	Very Severe
Toxic Emissions & Waste	G	10	No Controversies
Water Stress	Y	4	Moderate
Other (Environment)	G	10	No Controversies

Operational Waste (Non-Hazardous)

	Very Severe	Severe	Moderate	Minor	Flag	Score*	Type	Assessment
# of Cases:	0	0	1	0	Y	4	Structural	Moderate

Moderate Cases:

Oklahoma, US: Federal lawsuit by state over alleged poultry litter dumping and wastewater pollution; US district judge issued final judgment; appeal filed and request for stay pending

Last Reviewed Date: February 02, 2026Case Initiated Date: January 08, 2024Last Case Score Change Date: February 02, 2026

Case Assessment	Score: 4Flag: Y	Global Norms and Conventions
Severity: Moderate	Role: Direct Involvement	UN Guiding PrinciplesPass
Scale of Impact: Extensive	Status: Ongoing	ILO Alignment - CorePass
Nature of Harm: Medium		ILO Alignment - BroadPass
Exacerbating Circumstance: None		UN Global Compact AlignmentPass
Extenuating Circumstance: None		

Assessment Change Rationale: Following a review of the case in November 2025, the case status was changed from Concluded to Ongoing, due to new information that the federal lawsuit involving Cargill Incorporated was still ongoing.

Sources and Updates:

16 Jan 2026: Oklahoma attorney general cites continued pollution in opposition to delay on imposing illinois river ruling::headline2::::headline3:: (ARKANSAS DEMOCRAT-GAZETTE)

31 Dec 2025: Arkansas poultry companies cite ‘irreparable harms,’ seek stay on federal judge’s orders in illinois river watershed suit::headline2::::headline3:: (ARKANSAS DEMOCRAT-GAZETTE)

14 Jul 2025: Oklahoma AG asks judge to fine Tyson, others over poultry waste dumping, end certain practices. (The Oklahoman)

17 Jun 2025: Can Oklahoma AG strike a deal with poultry companies as decades-long lawsuit drags on?. (The Oklahoman)

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29 Oct 2024: No new information available.

29 Oct 2023: Poultry companies ask judge to dismiss ruling that they polluted an Oklahoma watershed. (The Associated Press)

20 Jan 2023: Tyson, others, lose Oklahoma lawsuit over poultry pollution. (The Associated Press)

Company Response: No response has been submitted by the company.

Note: this section is intended to capture any publicly available statement made by the company specific to this ESG controversy case. Issuers are welcome to submit these directly via our online issuer portal at any time and can contact esgissuercomm@msci.com for support as needed. Only one weblink can be provided as a company response per ESG controversy; companies may update the weblink provided here at any time via our portal. Weblinks are generally processed in approximately one week. Per our MSCI ESG Controversies methodology, MSCI analytical personnel do not verify the content and accuracy of any information provided by the issuer or by a third party source.

Please refer to the Appendix for the list of possible conclusion criteria for Controversy cases.

Supply Chain Management

	Very Severe	Severe	Moderate	Minor	Flag	Score*	Type	Assessment
# of Cases:	2	1	0	0	0	1	Non-Structural	Very Severe

Very Severe Cases:

Brazil, Bolivia, and US: Criticism and legal complaint by environmental protection groups over soy sourcing allegedly linked to deforestation

Last Reviewed Date: September 03, 2025 Case Initiated Date: April 07, 2017 Last Case Score Change Date: September 03, 2025

Case Assessment	Score: 1	Flag: 0	Global Norms and Conventions	
Severity: Very Severe	Role: Indirect Involvement		UN Guiding Principles	Pass
Scale of Impact: Extremely Widespread	Status: Ongoing		ILO Alignment - Core	Pass
Nature of Harm: Very Serious			ILO Alignment - Broad	Pass
Exacerbating Circumstance: None			UN Global Compact Alignment	Watch List
Extenuating Circumstance: None			UN Global Compact Principles	
			Principle 7 - Businesses should support a precautionary approach to environmental challenges.	

Assessment Change Rationale: In September 2025, following a review of the case, MSCI ESG Research maintained the case Score at 1 (Orange Flag). This Maintain status follows a targeted search yielding no new information that would warrant a change in the Very Severe, Ongoing, and Indirect assessment of the case.

Cargill, Incorporated (Cargill) has faced criticism from environmental protection groups for trading and processing soy, allegedly linked to deforestation in protected areas of Brazil and Bolivia. The company has also faced a legal complaint in the U.S. for its alleged failure to eliminate deforestation from its supply chain.

LATEST CASE DEVELOPMENTS

In February 2025, Reporter Brasil criticized Cargill for allegedly failing to follow the rules established under the Soy Moratorium, which the company had previously committed to. Instead of banning trade in soy grown on lands deforested in the Amazon biome after 2008, the company reportedly shifted the cutoff year to 2020, which was the limit set by the European Union Deforestation Regulation. The article alleged that using the 2008 benchmark, Cargill claimed that 94% of its soy was deforestation-free, while under the 2020 benchmark, this figure rose to 99.3%.

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BACKGROUND (FROM LEAST TO MOST RECENT)

In February 2017, Mighty Earth published a report entitled "The Ultimate Mystery Meat," wherein it highlighted the alleged role of several companies in the deforestation of forests in Brazil and Bolivia due to their sourcing of soy. The report criticized Cargill for financing infrastructure projects that allegedly contributed to deforestation and for setting weak deforestation targets. Additionally, Mighty Earth claimed that the area where Cargill operated a commercial silo in Brazil's Cerrado region appeared to have experienced 1,300 square kilometers of deforestation between 2011 and 2015.

In January 2018, Mighty Earth announced that 61 companies had signed the Cerrado Manifesto, a pledge to eliminate deforestation for large-scale agriculture in the Cerrado. The manifesto called on Cargill to extend its deforestation-free commitments from the Amazon to the Cerrado and other areas in Latin America.

In May 2018, several grain traders, including Cargill, were fined a total of BRL 105.7 million (approximately USD 28.8 million) by IBAMA. The agency stated that the penalty was due to the companies' connection to alleged illegal deforestation in the country.

In August 2018, Mongabay alleged that soy producers in Brazil's Cerrado and Bolivia's Gran Chaco continued to deforest the regions. The NGO further claimed that the soy grown in these areas was purchased by traders such as Cargill.

In June 2019, Mighty Earth published a report on deforestation caused by soy and beef production. The report alleged that Cargill was one of the main soy buyers in four locations within the Amazon and the Cerrado.

In July 2019, The New York Times reported that Mighty Earth released a report entitled "Cargill: The Worst Company in the World." The report criticized Cargill for allegedly failing to meet anti-deforestation goals related to its sourcing of soy and for refusing to implement a moratorium on purchasing soy grown on deforested lands in Brazil's Cerrado region.

In November 2020, The Guardian indicated that a joint report it prepared along with other agencies revealed that Cargill had allegedly been linked to the destruction of forests in the Cerrado region through its sourcing of soy. The commodity is then used to feed chicken supplied to supermarkets and fast food chains in the U.K. The report further alleged that Cargill failed to take sufficient measures to prevent deforestation in its supply chain.

In January 2022, The Guardian alleged that Cargill, a feed supplier to farm animals in the U.K., continued to source soy from a farm allegedly linked to deforestation in the Brazilian Amazon. These findings reportedly contrasted Cargill's commitment to not purchase soy from deforested lands in the Amazon after 2008.

In July 2022, Mighty Earth published a report on its investigation into the deforestation of Brazil's Cerrado and its links to soy cultivation and purchasing by traders. In particular, Cargill was linked to eight farms that were allegedly responsible for 247 square kilometers of illegal deforestation since August 2020.

In May 2023, the environmental law organization ClientEarth filed a complaint against Cargill over allegations that the company failed to conduct due diligence in its soy supply chain.

In September 2023, Global Witness published the findings of its investigation into soy grown in Bolivia. The NGO alleged that Cargill failed to trace the origins of its soy supplies in Bolivia, which meant that the company could not guarantee that its purchases were deforestation-free. The report further estimated that the soy the company purchased may have come from farms linked to 200 square kilometers of deforestation in Bolivia's Chiquitano forest.

In November 2023, Mongabay reported that Cargill announced that it had committed to having its supply chains in Brazil, Uruguay, and Argentina be deforestation- and land-conversion-free by 2025. In response, Mighty Earth criticized the company for its alleged failure to include other countries such as Bolivia, Paraguay, and Colombia in the commitment.

In March 2024, Mighty Earth published its second rapid response report on deforestation caused by soy cultivation in Brazil. The report connected Cargill to two suppliers that were allegedly linked to deforestation in both the Amazon and the Cerrado regions. Specifically, the NGO claimed that one Cargill supplier had received several environmental fines from Brazil's environmental agency, IBAMA, for alleged illegal clearing of native vegetation. According to the report, the supplier was allegedly responsible for 21.3 square kilometers of deforestation in the Amazon between January 2020 and December 2023. In the same month, Reporter Brasil alleged that deforestation persisted in Cargill's supply chain despite the company's no-deforestation commitments.

In October 2024, Mighty Earth published a report in partnership with AGTivist. The report alleged a link between Cargill and the illegal deforestation of 64.41 square kilometers of Brazil's Cerrado. Cargill, in turn, reportedly exported soy to a poultry meat producer that supplied supermarkets and fast food chains.

In December 2024, Mighty Earth alleged that Cargill was one of two soy traders in the U.S. linked to the bulk of deforestation in Brazilian biomes. The NGO specifically alleged that Cargill was "likely linked" to over 1,332.56 square kilometers of deforestation, of which 85% occurred in the Cerrado region.

Sources and Updates:

28 Aug 2025: Brazil's Atlantic Forest still losing 'large amounts' of mature forest, despite legal protection. (Mongabay)

13 Feb 2025: Cargill weakens Amazon no-deforestation vow, raising concerns about wider backslide. (Mongabay)

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CARGILL, INCORPORATED

10 Feb 2025: Cargill sinaliza saída da Moratória da Soja, pacto de proteção a Amazônia. [Cargill signals exit from the Soy Moratorium, a pact to protect the Amazon] (Reporter Brasil)

05 Dec 2024: "Terrible Trio": Bunge, Cargill & JBS ranked worst for deforestation. (Mighty Earth)

23 Oct 2024: Foul Play: Exposing Cargill and Moy Park Links to Deforestation. (Mighty Earth)

21 Mar 2024: Monitor #21: Chain of Responsibilities. (Reporter Brasil)

14 Mar 2024: Rapid Response #2 Soy Report: Monitoring deforestation in Brazilian supply chains. (Mighty Earth)

29 Nov 2023: Cargill widens its deforestation-free goals, but critics say it's not enough. (Mongabay)

06 Oct 2023: Top grain traders 'helped scupper' ban on soya from deforested land. (The Guardian)

06 Sep 2023: Empty promises: Cargill, soy, banks and the destruction of Bolivia's Chiquitano forest. (Global Witness)

04 May 2023: Grain trader Cargill faces legal challenge in the US over Brazilian soya supply chain. (The Guardian)

22 Jul 2022: PROMISES, PROMISES! Analysis of European Supermarkets' Implementation of the Retail Soy Group's Roadmap to End Deforestation Connected to Meat. (Mighty Earth)

14 Jan 2022: Feed supplier to UK farm animals still linked to Amazon deforestation. (The Guardian)

25 Nov 2020: Revealed: UK supermarket and fast food chicken linked to deforestation in Brazil. (The Guardian)

30 Jun 2020: 2020 South American Soy Mid-year Report. (Cargill, Incorporated)

Cargill reported on its efforts to end deforestation in its soy supply chain in South America. The company disclosed that 100% of its Brazilian supply chain have been mapped using georeferenced single points; it had plans to complete mapping for other countries. Moreover, the company reported that the soy it was sourcing from Brazil is approximately 95% deforestation- and conversion-free (DCF).

29 Jul 2019: From Environmental Leader to 'Worst Company in the World'. (The New York Times)

13 Jun 2019: Cargill says food industry will miss zero deforestation goal. (Reuters)

01 Jun 2019: Rapid Response Soy and Cattle, Report 1. (Mighty Earth)

16 Apr 2019: Brazil: 50 percent of the companies involved in domestic soy production have yet to commit to eliminating deforestation in their supply chains. (Business & Human Rights Resource Centre (Main))

15 Aug 2018: South American soy fed to EU livestock drives Gran Chaco deforestation. (Mongabay)

23 May 2018: Brazil fines five grain trading firms, farmers connected to deforestation. (Reuters)

25 Jan 2018: Support for Cerrado Manifesto Triples, Momentum Builds for Cargill and Bunge to Agree to End Deforestation for Soy, Meat. (Mighty Earth)

27 Feb 2017: The Ultimate Mystery Meat: Exposing the Secrets Behind Burger King and Global Meat Production. (Mighty Earth)

Company Response: No response has been submitted by the company.

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Indonesia, Malaysia, Mexico, and Papua New Guinea: Criticism by environmental protection groups over palm oil sourcing allegedly linked to deforestation

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Last Reviewed Date: September 03, 2025 Case Initiated Date: March 22, 2013

Case Assessment		Score: 2	Flag: Y	Global Norms and Conventions	
Severity: Very Severe		Role: Indirect Involvement		UN Guiding Principles	Pass
<i>Scale of Impact: Extremely Widespread</i>		Status: Partially Concluded		ILO Alignment - Core	Pass
<i>Nature of Harm: Very Serious</i>				ILO Alignment - Broad	Pass
<i>Exacerbating Circumstance: None</i>				UN Global Compact Alignment	Pass
<i>Extenuating Circumstance: None</i>					

Assessment Change Rationale: In September 2025, following a review of the case, MSCI ESG Research maintained the case Score at 2 (Yellow Flag). This Maintain status follows a targeted search yielding no new information that would warrant a change in the Very Severe, Partially Concluded, and Indirect assessment of the case.

Cargill, Incorporated (Cargill) has faced criticism from environmental protection groups for sourcing palm oil allegedly linked to deforestation in Indonesia, Malaysia, Mexico and Papua New Guinea.

LATEST CASE DEVELOPMENTS

In June 2024, the NGO Friends of the Earth US (FoE), WALHI, and Milieudefensie released a report entitled "Cultivating Conflict: How Astra Agro Lestari, Brands, and Big Finance Capitalize on Indonesia's Governance Gaps." The report broadly alleged that the Indonesian palm oil company Astro Agro Lestari (AAL) had been involved in multiple environmental violations in Central and West Sulawesi, Indonesia. The expansion of AAL's palm oil operations had reportedly resulted in deforestation and other environmental concerns. FoE alleged that at least 11 square kilometers of AAL's plantation were illegally located in Indonesia's forest estate. The report further alleged that palm oil traders, including Cargill, continued to purchase palm oil from AAL.

In May 2025, the Business & Human Rights Resource Centre reached out to the companies mentioned in June 2024 "Cultivating Conflict" report. The organization indicated that it did not receive a response from Cargill.

BACKGROUND (FROM LEAST TO MOST RECENT)

In July 2019, the NGO Mighty Earth released a report criticizing Cargill for its alleged ongoing failure to responsibly source palm oil, which reportedly came from rainforests that had been burned down.

In May 2020, Mighty Earth reported that several companies, including Cargill, had suspended Samling Group, a Malaysian palm oil company, from its supply chains. This suspension followed allegations that 8.86 square kilometers of deforestation between September 2018 and March 2020 were linked to this palm oil company.

In June 2020, the NGO Rainforest Action Network reported that the palm oil company PT Kallista Alam (PT KA) continued operating in Sumatra, despite the Indonesian government's imposition of a USD 26 million penalty on the company for allegedly illegally burning at least 10 square kilometers of the Leuser Ecosystem in 2012. RAN claimed that PT KA's harvests were reportedly supplied to companies such as Cargill.

In October 2021, a report by Global Witness alleged that Cargill and other companies sourced palm oil from companies linked to adverse environmental impacts in Papua New Guinea. In particular, the report estimated that approximately 246 square kilometers of forest had allegedly been impacted between 2011 and 2019 by a Malaysian-owned company operating in Papua New Guinea. The report suggested that Cargill was linked to this company's mill through its supply chain.

In March 2022, the NGO Chain Reaction Research (CRR) linked Cargill to one oil palm plantation allegedly responsible for 24.5 square kilometers of deforestation in Indonesia between 2020 and 2021. In the same month, FoE published a report entitled "No Consent- Astra Agro Lestari's land grab in Central and West Sulawesi, Indonesia." FoE alleged that AAL, through its subsidiaries, was involved in illegal deforestation, forest encroachment, and land conflicts with local communities. Several palm oil traders, including Cargill, reportedly sourced from AAL and its subsidiaries.

In a September 2022 report entitled "Carbon Bomb Scandals: Big Brands Driving Climate Disaster for Palm Oil," RAN identified 10 palm oil traders and processors, including Cargill, that allegedly contributed to the deforestation of the Rawa Singkil Wildlife Reserve in Indonesia through the sourcing of illegal palm oil.

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CARGILL, INCORPORATED

In June 2023, Mongabay reported that a study conducted by the University of Greifswald in Germany, in collaboration with the Center for Studies of Change in the Mexican Countryside and the civil organization Mexico via Berlin, alleged that the expansion of palm oil cultivation between 2014 and 2019 resulted in the loss of forests and jungles in Mexico. Palm oil grown in these areas was allegedly sold to several companies, including Cargill.

Sources and Updates:

- 19 May 2025: Indonesia: 46 companies linked to allegations of human rights and environmental abuses associated with 2nd largest palm oil producer; incl. cos. responses and non-responses. (Business & Human Rights)
- 25 Jun 2024: New Report Reveals Indonesian Palm Oil Giant's Violations More Widespread Than Initially Documented. (Friends of the Earth)
- 24 Jun 2024: Cultivating Conflict: How Astra Agro Lestari, Brands, and Big Finance Capitalize on Indonesia's Governance Gaps. (Friends of the Earth)
- 20 Jun 2023: Palm oil: The crop that cuts into southeastern Mexico's jungles and mangroves. (Mongabay)
- 19 Sep 2022: Carbon Bomb Scandals: Big Brands Driving Climate Disaster for Palm Oil. (Rainforest Action Network)
- 15 Feb 2022: Rapid Response - Palm Oil Report. (Mighty Earth)
- 23 Mar 2022: No Consent: Astra Agro Lestari's land grab in Central and West Sulawesi, Indonesia. (Friends of the Earth)
- 07 Mar 2022: The Chain: Deforestation Driven by Oil Palm Falls to a Four-Year Low. (Chain Reaction Research)
- 07 Oct 2021: The true price of palm oil. (Global Witness)
- 01 Aug 2021: Palm Oil Sustainability Report 2020. (Cargill, Incorporated)
- 19 Jun 2020: Palm oil from Indonesian grower that burned forest is still being sold. (Mongabay)
- 09 Jun 2020: Will Nestle and Mars intervene to protect Indonesia's peatlands? (Rainforest Action Network)
- 02 Jun 2020: 2019 Sustainable Palm Oil Report. (Cargill, Incorporated)
- 11 May 2020: Unilever, Mars, Hershey, and World's Largest Palm Oil Traders Suspend Rough Supplier Over Its Relentless Deforestation. (Mighty Earth)
- 29 Jul 2019: From Environmental Leader to 'Worst Company in the World'. (The New York Times)
- 29 Jul 2019: Cargill: The Worst Company in the World. (Mighty Earth)
- 20 Dec 2017: Agribusiness Giant Cargill Suspends Contract with Controversial Guatemalan Palm Oil Producer Over Environmental and Human Rights Violations. (Rainforest Action Network)
- 15 Nov 2016: HCS Convergence Process Concludes: Agreement on Unified Approach to Implementing No Deforestation Commitments. (Rainforest Action Network)

Company Response: No response has been submitted by the company.

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Severe Cases:

Cote d'Ivoire and Ghana: Criticism by environmental protection groups over cocoa sourcing allegedly linked to deforestation

Last Reviewed Date: September 03, 2025 **Case Initiated Date:** September 27, 2017 **Last Case Score Change Date:** September 03, 2025

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

Case Assessment	Score: 2 Flag: Y	Global Norms and Conventions	
Severity: Severe	Role: Indirect Involvement	UN Guiding Principles	Pass
<i>Scale of Impact:</i> Extremely Widespread	Status: Ongoing	ILO Alignment - Core	Pass
<i>Nature of Harm:</i> Serious		ILO Alignment - Broad	Pass
<i>Exacerbating Circumstance:</i> None		UN Global Compact Alignment	Pass
<i>Extenuating Circumstance:</i> None			

Assessment Change Rationale: In September 2025, following a review of the case related to allegations of deforestation due to cocoa sourcing, MSCI ESG Research maintained the case Score at 2 (Yellow Flag). We assess the case based on an "Extremely Widespread" Scale of Impact where Cargill was identified by the VOICE Network as one of the top traders and processors of cocoa in 2021 and a "Serious" Nature of Harm due to allegations on illegal deforestation in natural forests by environmental protection groups. In addition, the case was reassessed as Ongoing from Partially Concluded as Cargill did not meet the revised case upgrade criteria for Partial Conclusion.

Cargill, Incorporated (Cargill) has faced criticism from environmental protection groups for its sourcing of cocoa, which was allegedly a deforestation risk commodity, particularly in Cote d'Ivoire and Ghana.

LATEST CASE DEVELOPMENTS

In December 2022, VOICE Network, a coalition of trade unions and NGOs focused on sustainable cocoa, published its Cocoa Barometer report. According to the report, among the chocolate traders and processors, Cargill ranked third in the list of companies that utilized the most cocoa in 2021.

BACKGROUND (FROM LEAST TO MOST RECENT)

In September 2017, the NGO Mighty Earth published a report entitled "Chocolate's Dark Secret: How the Cocoa Industry Destroys National Parks." The report traced the links between the cocoa industry in Cote d'Ivoire and Ghana to cocoa traders, including Cargill. According to Mighty Earth's investigation, the expansion of the cocoa industry in the countries allegedly resulted in the illegal deforestation of national parks and protected forests. Deforestation in these areas threatened the habitats of animals such as elephants, pygmy hippos, leopards, and crocodiles.

In November 2017, several companies, including Cargill, committed to ending deforestation for cocoa production in West Africa.

In July 2019, Mighty Earth released a report that criticized Cargill's alleged ongoing failure to responsibly source cocoa. The NGO specifically alleged that Cargill potentially contributed to forest destruction in Cote d'Ivoire and Ghana by converting forests into cocoa farms. This activity allegedly led to a decline in wildlife populations.

In July 2021, Mighty Earth criticized several companies involved in the chocolate industry, including Cargill, for their lack of transparency in their supply chains. In addition, the NGO called for regulation against commodities that cause deforestation, including chocolate.

Sources and Updates:

06 Jun 2025: Cargill Cocoa & Forest Initiative Progress Report 2024. (Cargill, Incorporated)

07 Dec 2022: Cocoa Barometer 2022. (VOICE Network)

20 Jun 2022: Cocoa and Chocolate Sustainability Progress Report 2021. (Cargill, Incorporated)

17 Dec 2021: Cocoa and Chocolate Sustainability Progress Report 2020. (Cargill, Incorporated)

Cargill reported its continued efforts to address issues related to the company's cocoa supply chain. The company stated that it targeted to have zero deforestation in its cocoa supply chain by 2030. In addition, the company reported a 47% status of certified and sustainably sourced cocoa from its supply chain.

06 Jul 2021: U.S. Cocoa Imports: Secretive mega-traders get the lion's share. (Mighty Earth)

19 May 2020: Cocoa & Chocolate 2018-2019 Sustainability Progress Report. (Cargill, Incorporated)

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

Cargill published in its sustainability report its efforts in tackling issues related to the company's cocoa supply chain, including deforestation allegations. The company stated it leveraged the use of several technologies which mapped approximately 72% of its cocoa farmers in the direct supply chain. According to the company, polygon maps of farms and geo-graphic information systems in place would help in the risk assessment and evaluation of deforestation-related impacts in its supply chain.

- 29 Jul 2019: Cargill: The Worst Company in the World. (Mighty Earth)
- 21 Nov 2017: Chocolate makers agree to stop cutting down forests in West Africa for cocoa. (Mongabay)
- 01 Sep 2017: Chocolate's Dark Secret, How the Cocoa Industry Destroys National Parks. (Mighty Earth)

Company Response: No response has been submitted by the company.

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Water Stress					Flag	Score*	Type	Assessment
	Very Severe	Severe	Moderate	Minor				
# of Cases:	0	0	1	0	Y	4	Structural	Moderate

Moderate Cases:

Avara Foods, UK: Allegations of pollution and water-use violations in River Wye

Last Reviewed Date: December 19, 2025 Case Initiated Date: December 19, 2025 Last Case Score Change Date: December 19, 2025

Case Assessment		Global Norms and Conventions	
Severity: Moderate	Score: 4 Flag: Y	UN Guiding Principles	Pass
Scale of Impact: Extensive	Role: Direct Involvement	ILO Alignment - Core	Pass
Nature of Harm: Medium	Status: Ongoing	ILO Alignment - Broad	Pass
Exacerbating		UN Global Compact Alignment	Pass
Circumstance: None			
Extenuating			
Circumstance: None			

Sources and Updates:

- 03 Dec 2025: Mcdonald's chicken supplier back in the spotlight for excessive water use. (TBIJ)

Company Response: No response has been submitted by the company.

Note: this section is intended to capture any publicly available statement made by the company specific to this ESG controversy case. Issuers are welcome to submit these directly via our online issuer portal at any time and can contact esgissuercomm@msci.com for support as needed. Only one weblink can be provided as a company response per ESG controversy; companies may update the weblink provided here at any time via our portal. Weblinks are generally processed in approximately one week. Per our MSCI ESG Controversies methodology, MSCI analytical personnel do not verify the content and accuracy of any information provided by the issuer or by a third party source.

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

Please refer to the Appendix for the list of possible conclusion criteria for Controversy cases.

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Social

Controversies

01

CUSTOMERS CONTROVERSIES G 5

Indicators	Flag	Score	Assessment
Anticompetitive Practices	G	5	Moderate
Customer Relations	G	10	No Controversies
Marketing & Advertising	G	10	No Controversies
Privacy & Data Security	G	10	No Controversies
Product Safety & Quality	G	10	No Controversies
Other (Customers)	G	10	No Controversies

Anticompetitive Practices					Flag	Score*	Type	Assessment
	Very Severe	Severe	Moderate	Minor				
# of Cases:	0	0	1	0	G	5	Structural	Moderate

Moderate Cases:

US and Canada: Investigations and lawsuits over alleged anti-competitive practices in the beef market; USD 32.5 million settlement proposed

Last Reviewed Date: November 18, 2025 Case Initiated Date: June 25, 2020 Last Case Score Change Date: November 18, 2025

Case Assessment Severity: Moderate Scale of Impact: Extensive Nature of Harm: Medium Exacerbating Circumstance: None Extenuating Circumstance: None	Score: 5 Flag: G Role: Direct Involvement Status: Partially Concluded	Global Norms and Conventions UN Guiding Principles ILO Alignment - Core ILO Alignment - Broad UN Global Compact Alignment	 Pass Pass Pass Pass
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Assessment Change Rationale: In October 2025, the case related on alleged anti-competitive practices on beef market is downgraded from a Score of 6 (Green Flag) to a Score of 5 (Green Flag) following a change in Status from Concluded to Partially Concluded. The change was driven by a recent update indicating that the company had proposed a settlement to resolve a class action lawsuit alleging that it had colluded with other meat processors to fix the price of beef. The Severity remains Moderate due to an Extensive Scale of Impact and Medium Nature of alleged Harm to reflect anticompetitive probes by U.S. regulators in a product that meets basic needs. In addition, the Company Role remains Direct to reflect allegations wherein the negative impact is attributed to the company's actions or practices.

Sources and Updates:

- 10 Nov 2025: Cargill among meatpackers targeted by new Department of Justice investigation. (MPR News)
- 07 Nov 2025: US Justice Department probes meatpackers for price manipulation, collusion. (BUSINESS TIMES SINGAPORE)
- 09 Oct 2025: Tyson foods proposes \$55 million to settle beef price lawsuit::headline2::::headline3:.. (ARKANSAS DEMOCRAT-GAZETTE)
- 03 Sep 2024: MDL Statistics Report - Distribution of Pending MDL Dockets by Actions Pending. (United States Judicial Panel on Multidistrict Litigation)

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

- 31 Oct 2022: Specht et al. v. Cargill, Incorporated et al., 2:22-cv-2442. (US District Court, District of Kansas)
- 03 Jun 2022: In Re: Direct Purchaser Plaintiff Beef Antitrust Litigation, 0:22-md-03031-JRT-JFD. (District of Minnesota Court)
- 27 Apr 2022: Lawmakers question beef executives over soaring food prices. (Washington Post)
- 18 Feb 2022: Bui v. Cargill, Incorporated et al., S-221365. (Supreme Court of British Columbia)
- 03 Feb 2022: JBS reaches 'icebreaker' settlement of beef price-fixing claims. (Reuters)
- 29 Sep 2020: Meatpackers Duck Cattle Ranchers' Antitrust Suit, For Now. (LAW360)
- 06 Jun 2020: Samuels et al. v. Cargill, Inc. et al., 0:20-cv-01319-JRT-JFD. (US District Court, District of Minnesota)
- 05 Jun 2020: Lucas Statement on DOJ Investigation of Beef-Processing Industry. (House of Representatives, website)
- 05 Jun 2020: Justice Department Issues Subpoenas to Beef-Processing Giants. (The Wall Street Journal)
- 05 May 2020: RE: Antitrust concerns involving meat packers within the cattle industry. (Iowa Department of Justice, Office of the Attorney General)
- 09 Apr 2020: U.S. to probe surging beef prices, falling cattle prices during coronavirus pandemic. (Reuters)
- 31 Mar 2020: U.S. senators scrutinize meat packers' big profits during pandemic. (Reuters)
- 08 May 2019: Graham v. Tyson Foods Inc., et al., 4:19-cv-00368. (US District Court, Western District of Missouri)
- 23 Apr 2019: Lawsuit says Tyson, Cargill, JBS conspired to suppress beef prices paid to U.S. ranchers. (Reuters)

Company Response: No response has been submitted by the company.

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Please refer to the Appendix for the list of possible conclusion criteria for Controversy cases.

HUMAN RIGHTS & COMMUNITY CONTROVERSIES 0 1

Indicators	Flag	Score	Assessment
Civil Liberties	G	10	No Controversies
Human Rights Concerns	G	10	No Controversies
Impact on Local Communities	O	1	Severe
Other (Human Rights & Community)	G	10	No Controversies

Impact on Local Communities

	Very Severe	Severe	Moderate	Minor
# of Cases:	0	2	0	0

Flag

Score*

Type

Assessment

0

1

Structural

Severe

Severe Cases:

Avara Foods, UK: Lawsuit over alleged river pollution and its impact on residents, tourism, and livelihoods

Last Reviewed Date: December 19, 2025 Case Initiated Date: December 19, 2025 Last Case Score Change Date: December 19, 2025

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

Case Assessment	Score: 1 Flag: 0	Global Norms and Conventions
Severity: Severe	Role: Direct Involvement	UN Guiding Principles Watch List
<i>Scale of Impact:</i> Extremely Widespread	Status: Ongoing	ILO Alignment - Core Pass
<i>Nature of Harm:</i> Medium		ILO Alignment - Broad Pass
<i>Exacerbating Circumstance:</i> None		UN Global Compact Alignment Watch List
<i>Extenuating Circumstance:</i> None		UN Global Compact Principles
		<i>Principle 1 - Businesses should support and respect the protection of internationally proclaimed human rights.</i>

In October 2025, BBC and The Independent reported that almost 4,000 local residents and businesses had filed a lawsuit in the High Court against Avara Foods and its subsidiary Freemans of Newent, along with Welsh Water, claiming that pollution from large-scale chicken farming and sewage had severely damaged the Rivers Wye, Lugg, and Usk. The lawsuit alleged that run-off containing high levels of phosphorus and other pollutants from farmland caused algae blooms, dying fish, bad smells, and declining wildlife, which in turn adversely impacted tourism, property values, and people’s enjoyment of the rivers. All three companies denied the allegations.

In December 2025, The Bureau of Investigative Journalism reiterated in a report that Avara Foods and Freemans of Newent were already facing a High Court lawsuit in which more than 4,000 Wye Valley residents alleged that pollution from poultry manure run-off had contaminated the River Wye.

Avara Foods was reportedly a joint venture 50% owned by Cargill, and Freemans of Newent operated as Avara Food’s wholly owned subsidiary within that structure.

Sources and Updates:

- 02 Dec 2025: McDonald's chicken supplier back in the spotlight for excessive water use. (The Bureau of Investigative Journalism)
- 08 Oct 2025: Thousands bring UK’s biggest-ever environmental pollution legal action claim over River Wye. (The Independent)
- 08 Oct 2025: Thousands join biggest-ever UK environmental lawsuit over river pollution. (BBC)
- 09 Jul 2024: Lawyers set out River Wye pollution claim. (BBC)
- 08 Jul 2024: Legal pressures mount for Cargill over River Wye Pollution. (The Bureau of Investigative Journalism)

Company Response: No response has been submitted by the company.

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Please refer to the Appendix for the list of possible conclusion criteria for Controversy cases.

Brazil and Indonesia: Criticism by environmental and human rights protection groups over commodity sourcing allegedly linked to the encroachment of Indigenous Peoples lands and human rights violations

Last Reviewed Date: September 03, 2025 **Case Initiated Date:** September 03, 2025 **Last Case Score Change Date:** September 03, 2025

Case Assessment	Score: 2 Flag: 	Global Norms and Conventions	
Severity: Severe	Role: Indirect Involvement	UN Guiding Principles	Pass
<i>Scale of Impact:</i> Limited	Status: Ongoing	ILO Alignment - Core	Pass
<i>Nature of Harm:</i> Serious		ILO Alignment - Broad	Pass
<i>Exacerbating Circumstance:</i> Yes		UN Global Compact Alignment	Pass
<i>Extenuating Circumstance:</i> None			

Since at least 2021, Cargill, Incorporated (Cargill) has faced criticism from environmental and human rights protection groups for its sourcing of commodities such as palm oil and soy. These groups broadly alleged that Cargill's suppliers were linked to adverse impacts to Indigenous and local communities in areas in which they operate.

LATEST CASE DEVELOPMENTS

In May 2025, the Business & Human Rights Resource Centre published an article on the companies mentioned in the June 2024 "Cultivating Conflict" report. Reportedly, the organization did not receive a response from Cargill.

BACKGROUND (FROM LEAST TO MOST RECENT)

In June 2021, Forest Peoples Programme published a press release criticizing Cargill and other companies for their alleged links to human rights abuses against Indigenous communities in Indonesia through their palm oil supply chain. The alleged violations included land grabbing and violence against Indigenous peoples. Furthermore, the NGO alleged instances of harassment, criminalization, and killings of community members who were purportedly defending their lands.

In March 2022, FoE published a report entitled "No Consent: Astra Agro Lestari's land grab in Central and West Sulawesi, Indonesia," which alleged that the Indigenous and local communities adversely impacted by AAL and its subsidiaries had not given their Free, Prior, and Informed Consent to develop plantations on their lands. The report provided accounts of communities in Central and West Sulawesi alleging that AAL's subsidiaries had taken away thousands of hectares of land from community members without their consent. Furthermore, the NGO claimed that the companies allegedly resorted to "intensive repression," "human rights abuses," and the criminalization of community members when they attempted to continue to work on lands that were taken.

More specifically, FoE alleged that in 2004, PT Lestari Tana Teladan (PT LTT) and a unit of the Indonesian National Police forcefully seized land from villages in Towiora, Minti Makmur, Tinauka, and Rio Mukti. Witnesses alleged that intimidation and violence were used against the villagers, and that three residents were criminalized and imprisoned for several months for protesting the takeover. PT Mamuang was also reportedly involved in multiple conflicts with residents in farming communities. In one instance in 2017, four farmers who were harvesting palm oil on land for which they held legal ownership permits were allegedly criminalized and arrested for several months. Meanwhile, another farmer was reportedly subject to "violence, imprisonment, and threats to his life and his family" after attempting to resist the forceful takeover of his land by PT Mamuang. Palm oil from AAL and its subsidiaries reportedly flowed to Cargill.

In October 2023, The Guardian reported that a Munduruku Indigenous activist would deliver a letter to the Cargill family. The letter criticized Cargill for its alleged role in environmental destruction and harm to local communities in Brazil. The activist alleged that Cargill had pressured Indigenous peoples to leave their lands, which adversely affected their access to livelihoods and food. In addition, The Guardian reported that a railroad backed by Cargill to transport soya grown in the Cerrado could harm six Indigenous territories and three tribes.

In March 2024, Reporter Brasil published a report alleging that Cargill and other traders purchased soy from farmers who had previously been fined for planting on the Indigenous land of the Paresi people in Mato Grosso. Moreover, Mundukuru representatives alleged that Cargill's infrastructure projects in Itaituba had resulted in an increase in violence in the area.

In June 2024, FoE, WALHI, and Milieudefensie released a report entitled "Cultivating Conflict: How Astra Agro Lestari, Brands, and Big Finance Capitalize on Indonesia's Governance Gaps." The report broadly alleged that the Indonesian palm oil company AAL had been involved in multiple environmental and human rights violations against local and Indigenous communities in Central and West Sulawesi, Indonesia. Cargill and other traders allegedly sourced palm oil from AAL.

In September 2024, Reuters alleged that soybeans purchased by companies such as Cargill were illegally grown on Indigenous lands in Brazil.

Sources and Updates:

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

19 May 2025: Indonesia: 46 companies linked to allegations of human rights and environmental abuses associated with 2nd largest palm oil producer; incl. cos. responses and non-responses. (Business & Human Rights)

05 Sep 2024: Soy grown illegally on Brazil's tribal lands finds its way to global markets. (Reuters)

24 Jun 2024: Cultivating Conflict: How Astra Agro Lestari, Brands, and Big Finance Capitalize on Indonesia's Governance Gaps. (Friends of the Earth)

21 Mar 2024: Monitor #21: Chain of Responsibilities. (Reporter Brasil)

12 Oct 2023: 'Our world hangs by a thread': Indigenous activist asks US agri giant to stop destroying Amazon rainforest. (The Guardian)

23 Mar 2022: No Consent: Astra Agro Lestari's land grab in Central and West Sulawesi, Indonesia. (Friends of the Earth)

15 Jun 2021: Media release: New report documents multiple human rights abuses in the Indonesian palm oil industry supplying the world's biggest companies. (Forest Peoples Programme)

Company Response: No response has been submitted by the company.

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LABOR RIGHTS & SUPPLY CHAIN CONTROVERSIES Y 3

Indicators	Flag	Score	Assessment
Child Labor	Y	3	Severe
Collective Bargaining & Union	G	10	No Controversies
Discrimination & Workforce Diversity	G	10	No Controversies
Health & Safety	Y	3	Severe
Labor Management Relations	G	10	No Controversies
Supply Chain Labor Standards	G	5	Moderate
Other (Labor Rights & Supply Chain)	G	10	No Controversies

Child Labor					Flag	Score*	Type	Assessment
	Very Severe	Severe	Moderate	Minor				
# of Cases:	0	1	0	0	Y	3	Non-Structural	Severe

Severe Cases:

Brazil, Cote d'Ivoire, Ghana, and US: Criticism and lawsuits from human rights groups over cocoa sourcing allegedly linked to child labor

Last Reviewed Date: August 01, 2025 Case Initiated Date: January 15, 2014

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

Case Assessment	Score: 3 Flag: Y	Global Norms and Conventions	
Severity: Severe	Role: Indirect Involvement	UN Guiding Principles	Pass
<i>Scale of Impact:</i> Extremely Widespread	Status: Partially Concluded	ILO Alignment - Core	Pass
<i>Nature of Harm:</i> Serious		ILO Alignment - Broad	Pass
<i>Exacerbating Circumstance:</i> None		UN Global Compact Alignment	Pass
<i>Extenuating Circumstance:</i> None			

Assessment Change Rationale: In August 2025, MSCI ESG Research upgraded the case from a Score of 2 (Yellow Flag) to a Score of 3 (Yellow Flag) following a change in Status from Ongoing to Partially Concluded due to a recent update indicating that a lawsuit against the company had been rejected by a US federal appeals court. Meanwhile, another lawsuit filed by the human rights group remains ongoing.

Cargill, Incorporated (Cargill), along with other companies that source cocoa from Brazil, Cote d'Ivoire, and Ghana has faced criticism from human rights groups for allegedly failing to sufficiently address labor rights issues in cocoa farms, particularly those related to child labor, despite being a signatory to the Harkin-Engel Protocol aimed at eliminating child labor in cocoa farming by 2020. The company also faced a lawsuit in the U.S. for its purchase of cocoa allegedly linked to child labor.

LATEST CASE DEVELOPMENTS

In July 2025, a US federal appeals court rejected a proposed class action lawsuit by eight Malian individuals. This lawsuit had initially been filed in February 2021.

BACKGROUND (FROM LEAST TO MOST RECENT)

In 2005, Cargill, Archer-Daniels-Midland Company, and Nestle S.A. were named as defendants in a lawsuit filed on behalf of three Malian children who alleged that they were trafficked into Cote d'Ivoire and forced to work under slave-like conditions at cocoa farms. The companies allegedly purchased cocoa beans from these farms.

In March 2017, a US court dismissed the lawsuit, citing a lack of evidence linking the companies to labor issues overseas. The plaintiffs filed an appeal against this decision.

In June 2018, the Ninth Circuit Court of Appeals ordered the lawsuit to proceed.

In July 2020, the US Supreme Court stated that it would be reviewing the Appeals Court's decision.

In February 2021, IRA filed a lawsuit against Cargill and other cocoa traders and manufacturers on behalf of eight Malian young adults who were allegedly trafficked as children and forced to work without pay in Cote d'Ivoire. The lawsuit, which was filed in the U.S. District Court, District of Columbia, alleged that the defendants "knowingly profited" from the child laborers. The other defendants in the case include Barry Callebaut AG, Mondelez International Inc., Nestle S.A., Olam Group Limited, and The Hershey Company.

In June 2021, the US Supreme Court overthrew the first lawsuit against Cargill.

In June 2022, Reuters reported that a U.S. district judge dismissed the class action lawsuit by the IRA. The court declared that the plaintiffs did not show a connection between the plantations they worked at and the defendant companies. The plaintiffs filed an appeal in July 2022. As of January 2023, the case remained ongoing.

In December 2022, VOICE Network, a coalition of trade unions and NGOs focused on sustainable cocoa, published its biannual Cocoa Barometer report. According to the report, among the chocolate traders and processors, Cargill ranked third in the list of companies that utilized the most cocoa in 2021.

In September 2023, a Brazilian court ordered Cargill to pay BRL 600,000 (approximately USD 120,559) in compensation due to the company allegedly purchasing cocoa from Brazilian farms involved in slave and child labor practices.

In November 2023, a lawsuit was filed by the human rights group International Rights Advocates (IRA) against Cargill and other chocolate manufacturers on behalf of current and former cocoa workers and their family members who were allegedly subjected to the worst forms of child labor. The lawsuit broadly alleged the defendants failed to uphold the promises they made in the Harkin-Engel Protocol by not adequately addressing child labor issues in their supply chains.

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

Sources and Updates:

22 Jul 2025: Hershey, Nestle, other cocoa companies defeat appeal of child slavery lawsuit. (BNN BLOOMBERG)

28 Nov 2023: Kassim et al. v. Cargill, Incorporated et al., 2023-CAB-007264. (US District Court, Northern District of California)

27 Sep 2023: Brazil court fines Cargill in case involving child labor on cocoa farms. (Reuters)

20 Jan 2023: Coubaly et al. v. Cargill Incorporated et al., 22-7104. (District of Columbia Circuit Court of Appeals)

13 Jan 2023: Coubaly et al. v. Cargill Incorporated et al., 22-7104. (District of Columbia Circuit Court of Appeals)

07 Dec 2022: Cocoa Barometer 2022. (VOICE Network)

28 Jun 2022: Hershey, Nestle, Cargill win dismissal in U.S. of child slavery lawsuit. (Reuters)

18 Jun 2021: US Supreme Court blocks child slavery lawsuit against chocolate firms. (BBC)

12 Feb 2021: Mars, Nestlé and Hershey to face child slavery lawsuit in US. (The Guardian (London))

22 Oct 2020: Nonprofits Tell Justices Nestle, Cargill Liable For Child Slavery. (LAW360)

The Constitutional Accountability Center and the Yale Law School Center stated to the Supreme Court that the court had the authority to rule norms violations occurred overseas.

01 Sep 2020: Nestle, Cargill Deny Liability For Child Slavery At High Court. (LAW360)

Cargill and Nestle denied the claim of using child labor in Africa and urged the Supreme Court to reverse the Ninth Circuit's ruling.

03 Jul 2020: Court could end claims Nestle, Cargill abetted child labour. (The Canadian Press)

In July 2020, the US Supreme Court planned to review the appeals court decision to revive the lawsuit against Cargill and Nestle over alleged use of child labor on cocoa farms.

10 Jul 2019: USA: Federal court rules lawsuits against chocolate makers for alleged forced labour & child slavery can proceed. (Business & Human Rights Resource Centre (Main))

In July 2019, the US Court of Appeals for the Ninth Circuit reaffirmed its decision to allow the lawsuit against Cargill to proceed.

24 Oct 2018: US appeals court allows lawsuit against Nestlé & Cargill over their alleged complicity in child slavery to proceed. (Business & Human Rights Resource Centre (Main))

08 Jun 2018: US court to allow lawsuit against Nestlé & Cargill over alleged complicity in child slavery in cocoa farms in Côte d'Ivoire to proceed. (Business & Human Rights Resource Centre (Main))

14 Mar 2017: US judge dismisses lawsuit against Nestlé, Cargill & Archer Daniels Midland over alleged child slavery in Côte d'Ivoire. (Business & Human Rights Resource Centre (Main))

08 Feb 2017: Cargill and ICI to eradicate child labour from cocoa supply chains. (Progressive Media - Company News)

12 Jan 2016: Child labour case against Nestlé, ADM & Cargill will move forward after US Supreme Court declines to hear companies' appeal. (Business & Human Rights Resource Centre)

The U.S. Supreme Court decided not to review the Ninth Circuit Court's ruling against the chocolate companies in the child labor lawsuit. The SC ruling remanded the lawsuit back to the California district court where plaintiffs could amend their complaint. The complaint asserted the application of the Alien Tort Statute wherein U.S. companies could be held liable for human rights abuses that occurred in other countries where they have had or continue to have operations.

[accessed 03 Jul 2015]: Labor and Employment Section. (Cargill, Incorporated)

Cargill stated that it does not own or operate any cocoa farms but the company is taking action to help address the issue of child labor.

04 Jun 2015: ADM, Cargill & Nestlé appeal to US Supreme Court seeking dismissal of lawsuit alleging use of child labour in Côte d'Ivoire cocoa plantations. (Business & Human Rights Resource Centre (Main))

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

The three companies requested the federal appeals court that was handling the lawsuit to withhold its order until the US Supreme Court grants their petition to hear the case.

Company Response: No response has been submitted by the company.

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Health & Safety

	Very Severe	Severe	Moderate	Minor	Flag	Score*	Type	Assessment
# of Cases:	0	1	1	0	Y	3	Non-Structural	Severe

Severe Cases:

Canada and US: Investigations into allegations of failing to protect workers from COVID-19 exposure in meatpacking facilities

Last Reviewed Date: September 03, 2025 Case Initiated Date: December 14, 2021 Last Case Score Change Date: September 03, 2025

Case Assessment

Severity: Severe

Scale of Impact: **Extremely Widespread**

Nature of Harm: **Medium**

Exacerbating Circumstance: **None**

Extenuating Circumstance: **None**

Score: 3 **Flag:** Y

Role: Indirect Involvement

Status: Partially Concluded

Global Norms and Conventions

UN Guiding Principles	Pass
ILO Alignment - Core	Pass
ILO Alignment - Broad	Pass
UN Global Compact Alignment	Pass

Assessment Change Rationale: In September 2025, MSCI ESG Research upgraded the case from a Score of 2 (Yellow Flag) to a Score of 3 (Yellow Flag) following a change in Status from Ongoing to Partially Concluded due to a recent update indicating that Select Subcommittee on the Coronavirus Crisis has concluded its investigation. As of the date of the latest review, there was no information on the status of the investigation by the Royal Canadian Mounted Police.

Cargill, Incorporated (Cargill) faced complaints and investigations in Canada and the U.S. over its management of the COVID-19 pandemic in its meatpacking plants, which allegedly negatively impacted its employees and the surrounding communities.

LATEST CASE DEVELOPMENTS

In January 2024, an arbitrator ruled that Cargill does not need to pay damages for its handling of the COVID-19 outbreak in its High River meatpacking plant in Alberta, Canada. This arbitration ruling was a product of a grievance complaint filed by the United Food and Commercial Workers, Local No. 401 against Cargill in April 2020. The grievance broadly alleged that the company failed to protect its workers against COVID-19 and did not involve the union in COVID-19-related safety measures.

BACKGROUND (FROM LEAST TO MOST RECENT)

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CARGILL, INCORPORATED

In May 2020, the CBC released a report detailing the COVID-19 outbreak in Cargill's meatpacking plant in High River, which allegedly was the site of the largest outbreak in a single facility in North America. The outbreak reportedly led to 949 employee infections and two employee deaths. The CBC further alleged that COVID-19 measures, such as physical distancing, were not adequately enforced. In addition, employees were allegedly made to return to work despite the risk of infection.

In January 2021, the Royal Canadian Mounted Police launched an investigation into Cargill's alleged failure to protect its employees from getting infected with COVID-19, which resulted in a worker's death.

In September 2021, the Select Subcommittee on the Coronavirus Crisis, a subcommittee established by the United States House of Representatives, announced that it expanded its investigation into COVID-19 outbreaks at meatpacking facilities to include Cargill. The inquiries followed allegations that COVID-19 had severely impacted workers in meatpacking plants, leading to illnesses and deaths. According to the subcommittee, 1,394 Cargill employees were allegedly infected by the virus. In addition, one Cargill plant was allegedly linked to the spread of COVID-19 in the community.

In October 2021, Reuters reported that the Select Subcommittee on the Coronavirus Crisis revealed that 59,147 workers in meatpacking facilities had been infected with COVID-19, and 269 workers had died. The subcommittee further noted that this number was far higher than the one previously disclosed by the Occupational Safety and Health Administration.

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LATEST CASE DEVELOPMENTS

In December 2024, the Select Subcommittee on the Coronavirus Crisis concluded its investigation into the COVID-19 pandemic by publishing a 500-page report on its findings. By 2025, the committee had been terminated.

BACKGROUND (FROM LEAST TO MOST RECENT)

In May 2020, the CBC released a report detailing the COVID-19 outbreak in Cargill's meatpacking plant in High River, which allegedly was the site of the largest outbreak in a single facility in North America. The outbreak reportedly led to 949 employee infections and two employee deaths. The CBC further alleged that COVID-19 measures, such as physical distancing, were not adequately enforced. In addition, employees were allegedly made to return to work despite the risk of infection.

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In September 2021, the Select Subcommittee on the Coronavirus Crisis, a subcommittee established by the United States House of Representatives, announced that it expanded its investigation into COVID-19 outbreaks at meatpacking facilities to include Cargill. The inquiries followed allegations that COVID-19 had severely impacted workers in meatpacking plants, leading to illnesses and deaths. According to the subcommittee, 1,394 Cargill employees were allegedly infected by the virus. In addition, one Cargill plant was allegedly linked to the spread of COVID-19 in the community.

In October 2021, Reuters reported that the Select Subcommittee on the Coronavirus Crisis revealed that 59,147 workers in meatpacking facilities had been infected with COVID-19, and 269 workers had died. The subcommittee further noted that this number was far higher than the one previously disclosed by the Occupational Safety and Health Administration.

In June 2024, an arbitrator ruled that Cargill does not need to pay damages for its handling of the COVID-19 outbreak in its High River meatpacking plant in Alberta, Canada. This arbitration ruling was a product of a grievance complaint filed by the United Food and Commercial Workers, Local No. 401 against Cargill in April 2020. The grievance broadly alleged that the company failed to protect its workers against COVID-19 and did not involve the union in COVID-19-related safety measures.

Sources and Updates:

[accessed 28 Jul 2025]: House Oversight and Accountability Select Subcommittee on the Coronavirus Pandemic. (Congress.gov)

02 Dec 2024: FINAL REPORT: COVID Select Concludes 2-Year Investigation, Issues 500+ Page Final Report on Lessons Learned and the Path Forward. (Committee on Oversight and Government Reform)

10 Jun 2024: Cargill v. United Food and Commercial Workers, Local No. 401, 2024 CanLII 52128 (AB GAA). (Government of Alberta)

28 Oct 2021: Coronavirus infections at U.S. meat plants far higher than previous estimates -House subcommittee. (Reuters)

11 Jan 2021: RCMP launch criminal probe into COVID-19 death tied to massive Alberta meat plant outbreak. (CBC)

15 Sep 2021: Select Subcommittee Expands Investigation Into Coronavirus Outbreaks At Meatpacking Plants. (Select Subcommittee on the Coronavirus Crisis)

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

06 May 2020: Inside the slaughterhouse. (CBC)

28 Oct 2021: Coronavirus infections at U.S. meat plants far higher than previous estimates -House subcommittee. (Reuters)

Company Response: No response has been submitted by the company.

Note: this section is intended to capture any publicly available statement made by the company specific to this ESG controversy case. Issuers are welcome to submit these directly via our online issuer portal at any time and can contact esgissuercomm@msci.com for support as needed. Only one weblink can be provided as a company response per ESG controversy; companies may update the weblink provided here at any time via our portal. Weblinks are generally processed in approximately one week. Per our MSCI ESG Controversies methodology, MSCI analytical personnel do not verify the content and accuracy of any information provided by the issuer or by a third party source.

Please refer to the Appendix for the list of possible conclusion criteria for Controversy cases.

Moderate Cases:

Alberta, Canada: Investigation into workplace safety of High River meat processing plant amid COVID-19 outbreak

Last Reviewed Date: October 07, 2025 Case Initiated Date: May 05, 2020 Last Case Score Change Date: October 07, 2025

Case Assessment	Score: 6Flag: G	Global Norms and Conventions
Severity: Moderate	Role: Direct Involvement	UN Guiding PrinciplesPass
Scale of Impact: Extensive	Status: Concluded	ILO Alignment - CorePass
Nature of Harm: Medium		ILO Alignment - BroadPass
Exacerbating Circumstance: None		UN Global Compact AlignmentPass
Extenuating Circumstance: None		

Assessment Change Rationale: In June 2024, following a periodic review of the case updates, MSCI ESG Research retained the assessment of the case with a Score of 5 (Green Flag). A Partially Concluded Status was applied following the conclusion of the union's complaint against the company. In addition, the Type was changed from Non-Structural to Structural to reflect direct involvement as redefined by the Controversies Model enhancements. Companies will be considered to have direct involvement in a controversy, among other factors, if the negative impact is directly attributed to the company's actions and activities, whereby harm could not have happened without such actions or activities. Please note that the terms "Structural" and "Non-Structural" will be replaced with "Direct" and "Indirect" once all the cases for all companies are reassessed to reflect companies' involvement.

Sources and Updates:

- 11 Jun 2025: No new information available.
- 10 Jun 2024: Cargill Limited v. United Food and Commercial Workers, Local No. 401, 2024 CanLII 52128. (Alberta Grievance Arbitration Awards)
- 07 Feb 2021: New COVID-19 outbreak declared at Cargill meat plant in Alberta; site of Canada's largest outbreak. (CBC)
- 12 Jan 2021: Alberta RCMP reviewing whether COVID-19 death of meat-plant worker was criminal. (THE CANADIAN PRESS)
- 11 Jan 2021: RCMP investigating COVID-19 death of Alta. Cargill worker after family files complaint. (CTV NEWS)
- 11 Jan 2021: RCMP launch criminal probe into COVID-19 death tied to massive Alberta meat plant outbreak. (CBC)
- 12 May 2020: 2nd death at Cargill: Calls from Opposition, union to shut down for worker input; NDP wants Cargill shut down until workers consulted. (THE CANADIAN PRESS)
- 07 May 2020: No federal intervention, but continued support for provinces: PM Trudeau on Cargill protests. (CTV NEWS)
- 04 May 2020: Meat-packing plant's plan to reopen opposed by union; Cargill Inc.; Outbreak led to positive tests for almost 1,000. (THE NATIONAL POST)

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

01 May 2020: UFCW Local 401 takes legal action to stop Cargill High River from reopening amid COVID-19 outbreak. (GLOBENEWSWIRE)

23 Apr 2020: Alberta investigating COVID-19 outbreaks at two major beef processing plants; Alberta investigating COVID-19 at two beef plants. (THE CANADIAN PRESS)

22 Apr 2020: OHS considering fatality investigation into Cargill worker death. (CTV NEWS)

19 Apr 2020: What led to Alberta's biggest outbreak? Cargill meat plant's hundreds of COVID-19 cases. (CBC)

14 Apr 2020: Union 'deeply troubled' by lack of COVID-19 protection at meat plant; Union wants more protection at Alberta meat plant. (THE CANADIAN PRESS)

Company Response: No response has been submitted by the company.

Note: this section is intended to capture any publicly available statement made by the company specific to this ESG controversy case. Issuers are welcome to submit these directly via our online issuer portal at any time and can contact esgissuercomm@msci.com for support as needed. Only one weblink can be provided as a company response per ESG controversy; companies may update the weblink provided here at any time via our portal. Weblinks are generally processed in approximately one week. Per our MSCI ESG Controversies methodology, MSCI analytical personnel do not verify the content and accuracy of any information provided by the issuer or by a third party source.

Please refer to the Appendix for the list of possible conclusion criteria for Controversy cases.

Supply Chain Labor Standards					Flag	Score*	Type	Assessment
	Very Severe	Severe	Moderate	Minor				
# of Cases:	0	0	2	0	G	5	Non-Structural	Moderate

Moderate Cases:

US: Allegations of labor issues related to goods and services obtained from the prison labor system

Last Reviewed Date: October 07, 2025 Case Initiated Date: February 21, 2024 Last Case Score Change Date: October 07, 2025

Case Assessment	Score: 7 Flag: G	Global Norms and Conventions	
Severity: Moderate	Role: Indirect Involvement	UN Guiding Principles	Pass
<i>Scale of Impact: Limited</i>	Status: Concluded	ILO Alignment - Core	Pass
<i>Nature of Harm: Serious</i>		ILO Alignment - Broad	Pass
<i>Exacerbating Circumstance: None</i>		UN Global Compact Alignment	Pass
<i>Extenuating Circumstance: None</i>			

Sources and Updates:

29 Jan 2025: No new information available.

29 Jan 2024: Takeaways from the AP's investigation into how US prison labor supports many popular food brands. (TUCSON.COM)

29 Jan 2024: Prisoners in the US are part of a hidden workforce linked to hundreds of popular food brands. (AP The Associated Press)

Company Response: No response has been submitted by the company.

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

Note: this section is intended to capture any publicly available statement made by the company specific to this ESG controversy case. Issuers are welcome to submit these directly via our online issuer portal at any time and can contact esgissuercomm@msci.com for support as needed. Only one weblink can be provided as a company response per ESG controversy; companies may update the weblink provided here at any time via our portal. Weblinks are generally processed in approximately one week. Per our MSCI ESG Controversies methodology, MSCI analytical personnel do not verify the content and accuracy of any information provided by the issuer or by a third party source.

Please refer to the Appendix for the list of possible conclusion criteria for Controversy cases.

Sabah, Malaysia: Allegations of labor rights abuses, including failure to pay minimum wage, provide basic necessities, and furnish employment contracts in suppliers' palm oil plantations

Last Reviewed Date: August 19, 2025 Case Initiated Date: August 19, 2025

Case Assessment	Score: 5 Flag: 6	Global Norms and Conventions	
Severity: Moderate	Role: Indirect Involvement	UN Guiding Principles	Pass
Scale of Impact: Limited	Status: Ongoing	ILO Alignment - Core	Pass
Nature of Harm: Serious		ILO Alignment - Broad	Pass
Exacerbating Circumstance: None		UN Global Compact Alignment	Pass
Extenuating Circumstance: None			

Sources and Updates:

07 Aug 2025: Malaysia: Indonesian workers on palm oil plantations allegedly supplying multinational brands report rights violations, incl. poverty wages, gender discrimination & precarious conditions; incl. cos. responses & non-response. (Business & Human Rights)

26 Feb 2025: Living Wage for Migrant Workers in the Palm Oil Plantations in Sabah, Malaysia. (Business & Human Rights)

Company Response: No response has been submitted by the company.
Note: this section is intended to capture any publicly available statement made by the company specific to this ESG controversy case. Issuers are welcome to submit these directly via our online issuer portal at any time and can contact esgissuercomm@msci.com for support as needed. Only one weblink can be provided as a company response per ESG controversy; companies may update the weblink provided here at any time via our portal. Weblinks are generally processed in approximately one week. Per our MSCI ESG Controversies methodology, MSCI analytical personnel do not verify the content and accuracy of any information provided by the issuer or by a third party source.

Please refer to the Appendix for the list of possible conclusion criteria for Controversy cases.

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

Governance	Controversies
	G10

GOVERNANCE CONTROVERSIES

G

10

Indicators	Flag	Score	Assessment
Bribery & Fraud	G	10	No Controversies
Controversial Investments	G	10	No Controversies
Governance Structures	G	10	No Controversies
Other (Governance)	G	10	No Controversies

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

PERFORMANCE SUMMARY

	Flag	Score	Assessment
Environment	O	1	
Biodiversity & Land Use	G	10	No Controversies
Energy & Climate Change	G	10	No Controversies
Operational Waste (Non-Hazardous)	Y	4	Moderate
Supply Chain Management	O	1	Very Severe
Toxic Emissions & Waste	G	10	No Controversies
Water Stress	Y	4	Moderate
Other (Environment)	G	10	No Controversies
Social	O	1	
Customers	G	5	
Anticompetitive Practices	G	5	Moderate
Customer Relations	G	10	No Controversies
Marketing & Advertising	G	10	No Controversies
Privacy & Data Security	G	10	No Controversies
Product Safety & Quality	G	10	No Controversies
Other (Customers)	G	10	No Controversies
Human Rights & Community	O	1	
Civil Liberties	G	10	No Controversies
Human Rights Concerns	G	10	No Controversies
Impact on Local Communities	O	1	Severe
Other (Human Rights & Community)	G	10	No Controversies
Labor Rights & Supply Chain	Y	3	
Child Labor	Y	3	Severe
Collective Bargaining & Union	G	10	No Controversies
Discrimination & Workforce Diversity	G	10	No Controversies
Health & Safety	Y	3	Severe
Labor Management Relations	G	10	No Controversies
Supply Chain Labor Standards	G	5	Moderate
Other (Labor Rights & Supply Chain)	G	10	No Controversies
Governance	G	10	
Bribery & Fraud	G	10	No Controversies
Controversial Investments	G	10	No Controversies
Governance Structures	G	10	No Controversies
Other (Governance)	G	10	No Controversies

* For symbols and terms used in this report, refer to the "Glossary of Symbols and Terms" section.

GLOSSARY OF SYMBOLS & TERMS

The following are short definitions of some of the symbols and terms used in this report. Please refer to the methodology document for more information.

OVERALL COMPANY SCORE CHANGE DATE: Available on Page 1, the OVERALL COMPANY SCORE CHANGE DATE reflects the most recent date a change was made to the company’s Overall ESG Controversy Score. MSCI ESG Research monitors eligible sources daily, but the date is updated on the report only when a change in the Overall ESG Controversy Score has been recorded.

LAST REPORT UPDATE DATE: Available on Page 1, LAST UPDATE indicates the date a substantive update was made to the company report, either to one or multiple controversy cases. The date is updated when underlying data in the report is modified, regardless of whether this results in an Overall ESG Controversy Score change.

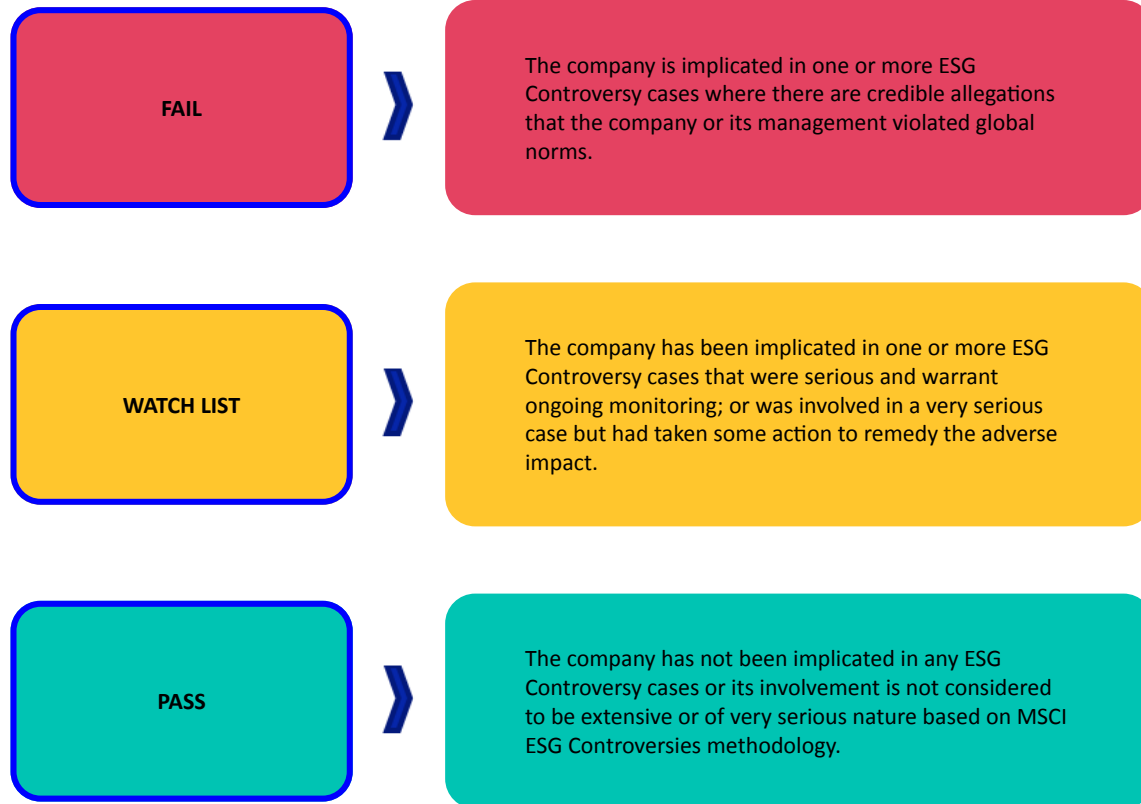
LAST REVIEWED: Available for each controversy case, the LAST REVIEWED date is the date of the most recent information related to the controversy.

OVERALL PERFORMANCE: SCORE AND FLAG:

Each company receives an overall score and flag based on our assessment of performance across the three pillars (E, S, and G), with the score driven by the lowest scoring indicator.

Company Flag	Flag Description
	Red Flag: indicates that a company is directly involved in one or more very severe controversies that has not yet been remediated
	Orange Flag: indicates that a company has either settled most of the stakeholders’ concerns related to its involvement to a very severe controversy or continues to be involved in a very severe controversy related to its business partners or directly involved in one or more severe cases.
	Yellow Flag: indicates that a company has either settled most or all of stakeholders’ concerns related to its involvement in severe or very severe controversy cases, or is directly implicated in one or more cases that are considered to be of moderate severity
	Green Flag: indicates that a company is not directly involved in any major controversies, but may be implicated in some minor incidents or practices with potential adverse impact.

GLOBAL COMPACT ALIGNMENT SIGNALS:



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MSCI ESG Research does not provide recommendations regarding actions to be taken in response to allegations. However, the following conditions may be considered during the review of a controversy case:

- **Dismissal of Allegations:** A case may be assessed as concluded or partially concluded if allegations are formally dismissed or refuted by a court, an external investigation, or an independent audit.
- **Revocation of Allegations:** A case may be reassessed if the party or parties raising the allegations withdraw their claims.
- **Remedial Action or Resolution:** A case may be reviewed for status updates where the company has taken steps to address the issues raised—such as reaching agreements with affected stakeholders, implementing remediation measures, or ceasing the relevant practices or engagements.
- **Lack of Sustained Attention:** A lack of ongoing negative publicity, stakeholder criticism, or new developments over an extended period (typically 2–3 years) may be a condition for status reassessment.

Note: A controversy case generally remains open if criticism or credible concerns persist, even if the company has responded or made remediation efforts.

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